Subject: Moderator Authority Over Residents' Use of Town Infrastructure
From: Stephen Harrington <sth.alist@gmail.com>
Date: 9/28/26, 22:09
To: sbadmin@town.arlington.ma.us
CC: John Hurd <JHurd@town.arlington.ma.us>, Jim Feeney <JFeeney@town.arlington.ma.us>

Dear Ashley Maher,

Please, disseminate to Select Board members and add to Correspondence Received for inclusion in the next Board (10/5) meeting.

Dear Select Board,

This correspondence asks what statute, bylaw, Town Meeting vote, or other lawful delegation authorizes the Moderator to impose binding rules on residents' access to Town-operated infrastructure outside Town Meeting proceedings.

On August 17, I asked the Town to identify the lawful authority for requiring an identified Arlington resident to obtain a Town Meeting Member intermediary before germane written advocacy may be received through the Town Meeting Email List and Annotated Warrant.

The Town's September 24 public-records production makes that question more concrete.

As one example, in April 2024, the Moderator expressly agreed that my Article 14 submission was applicable to the pending warrant article, but declined direct distribution because the TMM Email List required submissions to come from Town Meeting Members or Town officials. I was instead instructed to locate a TMM willing to submit it.

The newly produced internal correspondence also shows that these submission rules operate as an administrative system. The Moderator discusses interpreting and modifying submission limits according to his email workload and the Town Clerk's posting workload, including offering to enforce a different interpretation if the Clerk preferred it. The Clerk describes adding approved material to the Annotated Warrant and issuing the subsequent announcement.

Massachusetts law unquestionably gives the Moderator substantial parliametary authority to preside over and regulate the proceedings of Town Meeting. The unresolved question is what statute, bylaw, Town Meeting vote, or other lawful delegation extends that authority outside the proceedings to create and enforce year-round access rules governing residents' use of Town-operated communications and archives.

I therefore renew three questions:

- What governmental authority established the resident sponsorship requirement from May of 2022, encoded by the Town Meeting Guidelines starting in July of 2023 and enforced today?
- What governmental body or official has authority to amend or eliminate it?
- Is the Town's position that the Moderator may independently create binding access rules for residents outside Town Meeting proceedings?

I respectfully request a written answer and public discussion by the Board.

Stephen Harrington

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